Repealed

28 [Repealed 2003-1-14.]

Alternative employment

29 If an inspector makes an order under section 15 (5) (b) or (c), and the manager is unable to provide alternate employment, the manager must pay or cause to be paid to each worker the amount that the worker would have earned or been likely to earn for each day the closure continues, up to a maximum of 3 working days.

Posting of reports and orders

30 (1) Each manager must post in a conspicuous place at the mine all inspection reports and orders issued by an inspector and must maintain them there for 30 days.

(2) Each manager must ensure that all documents required to be posted are maintained in a legible condition.

Repealed

31 [Repealed 2003-1-15.]

Occupational health and safety committee

32 (1) Each manager must ensure that an occupational health and safety committee is established in accordance with the regulations or the code.

(2) A manager must allow committee members to participate in inspections, investigations and meetings of the committee under this Act, and that participation must be considered as time worked.

Appeal to chief inspector

33 (1) A person who is adversely affected by a decision or order of an inspector or an order of the chief auditor may, within 30 days of its issue, appeal the decision or order to the chief inspector.

(2) The manager, occupational health and safety committee and local union must be given an opportunity to make a submission on the matter of the appeal, receive copies of all submissions and be notified of the chief inspector's decision on the appeal.

(3) An appeal taken under this section does not operate as a stay or suspend the operation of the decision being appealed unless the chief inspector orders otherwise.

Health, safety and reclamation code committee

34 (1) The minister must establish a health, safety and reclamation code committee consisting of the members the minister appoints.

(2) The chief inspector is a member and the chair.

(3) The committee must prepare a code dealing with all aspects of health, safety and reclamation in the operation of a mine and may amend the code from time to time as required.

(4) A provision of the code may specify that the approval or consent of an inspector or some other person is required before a specified action may be taken.

(5) Without limiting subsection (4), the code may require approval or consent before a specified type of equipment is used at a mine or continues to be used in specified circumstances.

(6) The code and any amendments to it come into force on approval of the Lieutenant Governor in Council.

(7) If there is a conflict between a provision of the code and a provision of the regulations, the regulations apply.

(8) Where there is a conflict between a provision of the code and a provision of the *Freedom of Information and Protection of Privacy Act*, the code applies.

(9) Subsection (8) does not apply to personal information, as defined in the *Freedom of Information and Protection of Privacy Act*, that has been in existence for 100 or more years or to other information that has been in existence for 50 or more years.

Enforcement of Act, regulations, code, permit or order

35 (1) If an inspector finds that a mine is not being operated in accordance with an order under section 15 or a provision of the Act, the regulations, the code or a permit, the inspector may order the owner, agent, manager, permittee or person apparently in charge in, on or about a mine to comply with the order or provision.

(2) If a person fails or refuses to comply with an order of an inspector under subsection (1) of this section or under section 15, the inspector may apply to the Supreme Court for an order directing the person to comply.

Annual report

36 The chief inspector must publish an annual report showing results during the previous year in achieving the purposes of this Act.

Contraventions

36.1 (1) After giving a person an opportunity to be heard, the chief inspector may find on a balance of probabilities that the person has contravened or failed to comply with any of the following provisions:

(a) a prescribed provision of this Act, the regulations or the code;

(b) a provision of an order made under this Act;

(c) a term or condition imposed under section 10 (1.1), (2), (2.01), (3), (4) or (7), 17 (5) or 38 (4) of this Act.

(2) If a corporation contravenes or fails to comply with a provision referred to in subsection (1), a director, officer or agent of the corporation who authorized, permitted or acquiesced in the contravention or failure also contravenes or fails to comply with the provision and is also liable to an administrative penalty under section 36.2.

(3) If an employee, contractor or agent of a corporation contravenes or fails to comply with a provision referred to in subsection (1) in the course of carrying out the employment, contract or agency, the corporation also contravenes or fails to comply with the provision and is also liable to an administrative penalty under section 36.2.

Administrative penalties

36.2 (1) If the chief inspector finds that a person has contravened or failed to comply with a provision referred to in section 36.1 (1), the chief inspector may, after considering the prescribed matters, impose an administrative penalty on the person in an amount that does not exceed the prescribed limit.

(2) A person may be prosecuted under this Act for a contravention or failure in relation to which an administrative penalty has been imposed.

(3) In imposing a sentence for an offence under this Act, the court may consider an administrative penalty imposed in relation to the same matter.

(4) If a person is convicted of an offence under this Act, an administrative penalty may not be imposed on the person in respect of the same circumstances that gave rise to the conviction.

Notice of contravention or penalty

36.3 If the chief inspector finds that a person has contravened or failed to comply with a provision referred to in section 36.1 (1) or if the chief inspector imposes an administrative penalty on the person under section 36.2 (1), the chief inspector

(a) must give to the person a notice of the decision, and the notice must

(i) identify the contravention,

(ii) advise the person of the person's right to appeal the decision under section 36.7, and

(iii) if an administrative penalty is being imposed, specify the amount of the penalty and the date by which the penalty must be paid, and

(b) may make public the reasons for the decision and the amount of the penalty, if any.

Due date of penalty

36.4 A person on whom an administrative penalty is imposed under section 36.2 must pay the penalty within 40 days after the later of the following dates, as applicable:

(a) the date on which the notice referred to in section 36.3 is given to the person;

(b) if the person commences an appeal under section 36.7, the date on which the notice referred to in section 36.7 (4) (b) is given to the person.

Enforcement of administrative penalty

36.5 (1) An administrative penalty constitutes a debt payable to the government by the person on whom the penalty is imposed.

(2) If a person fails to pay an administrative penalty as required under section 36.4, the government may file with the Supreme Court or Provincial Court a certified copy of the notice imposing the penalty and, on being filed, the notice has the same force and effect, and all proceedings may be taken on the notice, as if the notice were a judgment of that court.

Limitation period

36.6 (1) The time limit for giving a notice under section 36.3 is 3 years after the date on which the act or omission alleged to constitute the contravention or failure to comply first came to the attention of the chief inspector.

(2) A certificate purporting to have been issued by the chief inspector and certifying the date referred to in subsection (1) is proof of that date.

Appeal

36.7 (1) In this section, "**appeal tribunal"** means a tribunal identified by regulation for the purposes of this section.

(2) A person to whom a notice has been given under section 36.3 may appeal to the appeal tribunal a decision that is the subject of the notice.

(3) The time limit for a person to commence an appeal is 30 days after the date on which the notice under section 36.3 is given to the person.

(4) On an appeal under subsection (2), the appeal tribunal

(a) may confirm, vary or rescind the decision that is the subject of the notice, and

(b) must notify the person of the decision made under paragraph (a) of this subsection.

Offence and penalty

37 (1) A person commits an offence if the person obstructs, impedes or otherwise interferes with, or knowingly provides false or misleading information or records to, an official while the official is exercising a power or performing a duty under this Act.

(2) A person who contravenes any of the following commits an offence:

(a) a provision of this Act, the regulations or the code;

(b) a condition of a permit;

(c) an order made under this Act.

(3) A person who commits an offence is liable to a fine of not more than $1 000 000 or to imprisonment for not more than 3 years or both.

(3.1) The time limit for laying an information to commence a prosecution for an offence under this Act is 5 years after the date on which the chief inspector learned of the facts on which the information is based.

(3.2) A certificate purporting to have been issued by the chief inspector certifying the date referred to in subsection (3.1) is proof of that date.

(4) If an inspector serves a written notice on a person alleging a contravention of this Act, the regulations or the code, or an order under any of them, that person, on conviction, is liable to a penalty, in addition to the penalties provided under subsection (3), of not more than $5 000 and not less than $500 for every day during which the offence continues to be committed after receipt of the notice.

(5) If a corporation commits an offence, a director or officer of the corporation who authorized, permitted or acquiesced in the offence is, even if the corporation is convicted, liable to the penalty set out in subsection (3).

Section 5 of *Offence Act* does not apply

37.1 Section 5 of the *Offence Act* does not apply to this Act or the regulations.

Power to make regulations

38 (1) The Lieutenant Governor in Council may make regulations referred to in section 41 of the *Interpretation Act*.

(2) Without limiting subsection (1), the Lieutenant Governor in Council may make regulations as follows:

(a) governing exploration, development, operation, closure and abandonment of mines and mining property;

(a.1) respecting applications for, and the issuance of, permits and approvals, including but not limited to prescribing time limits within which specified steps in the application process must be taken;

(a.2) for the purposes of section 10 (1.1) and (2.01);

(b) respecting the type, application, use and operation of equipment, machinery and other property in, on or about mines, whether moveable or immovable or whether used in mining operations or not;

(c) relating directly or indirectly to the health and safety of all persons, including the public, in, on or about mines, either underground or on the surface;

(d) respecting standards for environmental protection and reclamation;

(e) respecting the conservation of cultural heritage resources;

(f) requiring management to give members of the occupational health and safety committee access to relevant records;

(g) requiring management to give access to the mine and to its records for the purposes of investigation of death or injury, accidents or dangerous or unusual occurrences;

(h) requiring management to forbid a person to enter or engage in work if the person is impaired or has drugs or liquor in the person's possession;

(i) requiring management to forbid persons to engage in horseplay;

(j) and (k) [Not in force.]

(l) prescribing fees and charges that must be paid in respect of any matter for which a service is provided or a duty performed under this Act and prescribing the time and manner of payment of the fees and charges;

(m) prescribing provisions for the purposes of section 36.1 (1) (a);

(n) prescribing matters and limits for the purposes of section 36.2 (1);

(o) authorizing administrative penalties to be imposed on a daily basis for continuing contraventions or failures;

(p) prescribing the consequences of failing to pay an administrative penalty, which consequences may include, but are not limited to, imposing additional penalties;

(q) for the purposes of section 36.7, identifying a tribunal and specifying the provisions of the *Administrative Tribunals Act* that apply to the tribunal for the purposes of hearing appeals under this Act.

(3) A regulation under subsections (1) or (2) may

(a) make different provisions for different mines or for different classes or types of mines,

(b) adopt all or part of a code or standard published by a national or international standards association, as amended from time to time,

(c) specify that the approval or consent of an inspector or some other person is required before a specified action may be taken, and, without limiting this section, may require approval or consent before a specified type of equipment is used at a mine or continues to be used in specified circumstances,

(d) delegate to inspectors the power, by order, to vary codes, standards and other prescribed matters in the interests of health and safety in individual mines, and

(e) limit, restrict or prohibit, for a prescribed period of time, exploration or mining of uranium, if the uranium is more than a prescribed amount or proportion, within any or all mines, and to close, in the interest of health or safety, any mining operation in which more uranium than the prescribed amount or proportion is found.

(4) If a regulation is made that results in a limitation, restriction or prohibition on exploration or development or results in the closure of a mining operation, the chief inspector may, on conditions ordered by the chief inspector, consent to

(a) the recommencement of exploration or development, or

(b) the opening of a mining operation that has been closed under that regulation.

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Mines Act

ADMINISTRATIVE PENALTIES (MINES) REGULATION

B.C. Reg. 47/2017

Last amended May 8, 2023 by B.C. Reg. 118/2023

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Part 1 – Procedures for Making Determinations

Definition

1 In this regulation, **"Act"** means the *Mines Act*.

Assessment of administrative penalty

2 Before the chief inspector imposes an administrative penalty on a person, the chief inspector must consider the following matters, if applicable:

(a) the gravity and magnitude of the contravention or failure;

(b) the real or potential adverse effect of the contravention or failure;

(c) previous contraventions or failures by, administrative penalties imposed on, or orders issued to the following:

(i) the person who is the subject of the determination;

(ii) if the person is an individual, a corporation for which the individual is or was a director, officer or agent;

(iii) if the person is a corporation, an individual who is or was a director, officer or agent of the corporation;

(d) whether the contravention or failure was repeated or continuous;

(e) whether the contravention or failure was deliberate;

(f) any economic benefit derived by the person from the contravention or failure;

(g) the person's efforts to prevent the contravention or failure;

(h) the person's efforts to correct the contravention or failure;

(i) the person's efforts to prevent reoccurrence of the contravention or failure;

(j) any other factors that, in the opinion of the chief inspector, are relevant.

Enforcement of administrative penalty – permits

3 If a person fails to pay an administrative penalty as required under section 36.4 *[due date of penalty]* of the Act, the chief permitting officer may refuse to consider applications made by the person for a permit, or for the amendment of a permit, until the penalty is paid in full.

[am. B.C. Reg. 6/2021, App. 1, s. 1.]

Part 2 – Administrative Penalties

Prescribed provisions of Act

4 (1) A person who contravenes section 10 (1) *[permits]*, 11.1 *[acquisition of a mine]*, 14 (1) *[discrimination]*, 15 (7) *[inspections]* or 21 *[appointment of manager]* of the Act or an order issued under section 10.1 (2) (a), 14 (3), 15 (4.1) or (5) or 35 (1) *[enforcement of Act, regulations code, permit or order]* of the Act is liable to an administrative penalty not exceeding $500 000.

(2) A person who contravenes section 26 *[supervision required]*, 27 *[mine plans]* or 32 (1) or (2) *[occupational health and safety committee]* of the Act or an order issued under section 15 (4) (d) of the Act is liable to an administrative penalty not exceeding $100 000.

(3) A person who contravenes section 30 (1) or (2) *[posting of reports and orders]* of the Act is liable to an administrative penalty not exceeding $40 000.

[am. B.C. Reg. 6/2021, App. 1, s. 2.]

Prescribed provisions of Mines Regulation

5 A person who contravenes section 1 *[investigation by inspector]* of the Mines Regulation, respecting the obligations of management, is liable to an administrative penalty not exceeding $500 000.

Repealed

6 Repealed. [B.C. Reg. 7/2021, Sch. s. 1.]

Prescribed provisions of Health, Safety and Reclamation Code for Mines in British Columbia

7 (1) A person who contravenes section 1.7.2 (1) (a) or (b) *[notification of a reportable incident]*, 1.11.1 *[training]*, 2.13.2 (1) *[Use, Storage, Handling]*, 3.4.1 *[work in confined spaces]*, 3.7.1 (1) *[Mine Emergency Response Plan]*, 10.5.1 *[construction of tailings and water management facilities]*, 10.5.2 *[Operations, Maintenance and Surveillance (OMS) Manual]*, 10.5.3 *[annual dam safety inspection]* or 10.5.4 *[dam safety reviews]* of the code is liable to an administrative penalty not exceeding $500 000.

(2) A person who contravenes section 1.12.1 *[open pit]*, 1.12.2 *[underground non coal]*, 1.12.3 *[underground coal mine]* or 1.12.5 *[manager]* of the code is liable to an administrative penalty not exceeding $100 000.

(3) A person who contravenes section 1.11.2 *[record of training]* of the code is liable to an administrative penalty not exceeding $40 000.

[am. B.C. Regs. 7/2021, Sch. s. 2; 118/2023.]

Part 3 – Appeals

Definition

8 In this Part, **"appeal"** means an appeal under section 36.7 *[appeal]* of the Act.

Appeal tribunal

9 For the purposes of section 36.7 of the Act and this Part, the appeal tribunal is the Environmental Appeal Board continued under the *Environmental Management Act*.

Application of *Administrative Tribunals Act* to appeal tribunal

10 The following provisions of the *Administrative Tribunals Act* apply to the appeal tribunal:

(a) Part 1 *[Interpretation and Application]*;

(b) Part 2 *[Appointments]*;

(c) Part 3 *[Clustering]*;

(d) Part 4 *[Practice and Procedure]*, except the following:

(i) section 23 *[notice of appeal (exclusive of prescribed fee)]*;

(ii) section 24 *[time limit for appeals]*;

(iii) section 25 *[appeal does not operate as stay]*;

(iv) section 34 (1) and (2) *[power to compel witnesses and order disclosure]*;

(e) Part 6 *[Costs and Sanctions]*;

(f) Part 7 *[Decisions]*;

(g) Part 8 *[Immunities]*;

(h) Part 9 *[Accountability and Judicial Review]* except section 58 *[standard of review with privative clause]*.

[Provisions relevant to the enactment of this regulation: *Mines Act*, R.S.B.C. 1996, c. 293, s. 38.]

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Mines Act

MINE RECLAMATION FUND REGULATION

B.C. Reg. 287/94

Fund established

1 The mine reclamation fund described in section 12 of the *Mines Act* is established.

[Provisions of the *Mines Act*, R.S.B.C. 1996, c. 293, relevant to the enactment of this regulation: sections 12 and 38]

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Mines Act

MINES FEE REGULATION

B.C. Reg. 54/2015

Last amended January 25, 2021 by B.C. Reg. 6/2021

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Part 1 – Interpretation

Interpretation

1 (1) In this regulation:

"Act" means the *Mines Act*;

"advisory committee" means an advisory committee established for the purposes of section 9 of the Act;

"mineral or coal mine" means a mine at which mining activities in relation to surface or underground development or production of coal or minerals occur;

"Minister of Finance" means the minister responsible for the administration of the *Financial Administration Act*;

"pit or quarry" means a mine at which mining activities in relation to rock, industrial minerals, limestone, earth, clay, sand or gravel occur;

"placer mine" means a mine at which mining activities in relation to placer minerals occur;

"regional mine" means a placer mine or a pit or quarry.

(2) For the purposes of this regulation, each cubic metre of pay dirt moved in a placer mine is deemed to be equivalent to 2 tonnes of pay dirt moved in the mine.

Part 2 – Permit Fees

Prescribed permit fees

2 (1) The prescribed fees for the review of an application for a permit or a revision to a permit are as set out in this Part.

(2) This Part applies to the following persons:

(a) a person who holds a permit on or after April 1, 2015;

(b) an applicant for a permit or a revision to a permit, if the application

(i) is made on or after April 1, 2015, or

(ii) was in relation to a mineral or coal mine and made before April 1, 2015 but no decision has been made to issue or to refuse the permit as of April 1, 2015.

General rules for regional mines

3 (1) This section applies to applicants for, and holders of, permits in respect of regional mines.

(2) An applicant for a permit or a revision to a permit for a placer mine must include with the application both of the following:

(a) a statement of the maximum number of tonnes of pay dirt proposed to be moved in the highest producing year of the permit;

(b) the applicable permit fee, if any, as determined under section 4 *[permit fees for regional mines]*.

(3) An applicant for a permit or a revision to a permit for a pit or quarry must include with the application all of the following:

(a) Repealed. [B.C. Reg. 73/2018, Sch. 2, s. 1.]

(b) a statement of the maximum number of tonnes of materials proposed to be extracted in the highest producing year of the permit;

(c) the applicable permit fee, if any, as determined under section 4.

[am. B.C. Reg. 73/2018, Sch. 2, s. 1.]

Permit fees for regional mines

4 (1) The applicable permit fees for the purposes of section 3 (2) (b) and (3) (c) *[general rules for regional mines]* are as set out in this section.

(2) No permit fee applies in respect of an application for a revision that, in the opinion of the chief permitting officer, is merely administrative or clerical in nature.

(3) Subject to subsection (2) of this section, the permit fee in respect of a placer mine is the fee, if any, set out in Column 3 of Table 1 opposite the tonnes of pay dirt stated under section 3 (2) (a), as set out in

(a) Column 1, in respect of a placer mine that is proposed to operate under the permit for 5 years or less, or

(b) Column 2, in respect of a placer mine that is proposed to operate under the permit for more than 5 years.

Table 1: Permit Fees for Placer Mines

Column 1	Column 2	Column 3
Tonnes proposed to be moved in highest producing year		**Permit fee**
Placer mine proposed to operate for 5 years or less	**Placer mine proposed to operate for more than 5 years**	
< 60 000	< 10 000	$0
60 000 – < 125 000	10 000 – < 60 000	$4 000
125 000 – < 250 000	60 000 – < 125 000	$8 000
250 000 – < 500 000	125 000 – < 250 000	$16 000
≥ 500 000	≥ 250 000	$32 000

(4) Subject to subsection (2) of this section, the permit fee in respect of a pit or quarry is the fee, if any, set out in Column 2 of Table 2 opposite the tonnes of materials stated under section 3 (3) (b), as set out in Column 1.

Table 2: Permit Fees for Pits and Quarries

Column 1	Column 2
Tonnes proposed to be extracted in highest producing year	**Permit fee**
< 5 000	$0
5 000 – < 10 000	$1 500
10 000 – < 20 000	$3 000
20 000 – < 30 000	$6 000
30 000 – < 40 000	$9 000
40 000 – < 50 000	$12 000

Table 2: Permit Fees for Pits and Quarries

Column 1	Column 2
Tonnes proposed to be extracted in highest producing year	**Permit fee**
50 000 – < 60 000	$15 000
60 000 – < 70 000	$18 000
70 000 – < 80 000	$21 000
80 000 – < 90 000	$24 000
90 000 – < 100 000	$27 000
100 000 – < 130 000	$30 000
130 000 – < 170 000	$40 000
≥ 170 000	$50 000

[am. B.C. Regs. 73/2018, Sch. 2, s. 2; 6/2021, App. 2, s. 1.]

General rules for mineral or coal mines

5 (1) This section applies to applicants for, and holders of, permits in respect of mineral or coal mines.

(2) On receiving an application for a permit or a revision to a permit, the chief permitting officer must

(a) determine the applicable permit fee, if any, in accordance with section 6 *[permit fees for mineral or coal mines]*, and

(b) advise the applicant, in writing, of the amount of the permit fee and the date by which the fee must be paid.

(3) If the chief permitting officer advised an applicant that the applicable permit fee was that set out under section 6 (3) (a) but the chief permitting officer subsequently refers the application to an advisory committee, the chief permitting officer must

(a) determine, in accordance with section 6, the applicable permit fee,

(b) subtract from the amount determined under paragraph (a) the amount of the permit fee already paid, and

(c) advise the applicant, in writing, of the amount of the additional permit fee as determined under paragraph (b) and the date by which the fee must be paid.

(4) An applicant who receives a notice under subsection (2) (b) or (3) (c) must pay the permit fee stated in the notice on or before the date stated in the notice.

[am. B.C. Reg. 6/2021, App. 2, s. 1.]

Permit fees for mineral or coal mines

6 (1) The applicable permit fees for the purposes of section 5 [general rules for mineral or coal mines] are as set out in this section.

(2) No permit fee applies in respect of an application for a revision that, in the opinion of the chief permitting officer, is merely administrative or clerical in nature.

(3) Subject to subsection (2), the following permit fees apply:

(a) $10 000, if the chief permitting officer does not refer the application to an advisory committee;

(b) $125 000, if the chief permitting officer refers the application to an advisory committee.

(4) Despite subsection (3) (b), the chief permitting officer may reduce the permit fee for an application referred to an advisory committee to $60 000 if the chief permitting officer is of the opinion that

(a) the application is significantly less complex than usual, and

(b) the subject matter of the application is not likely to significantly

(i) change the design components of the mine, the mine plan or the reclamation program to be carried out in respect of the mine,

(ii) increase the impact on the land, watercourses or cultural heritage resources affected by the mine, or

(iii) increase risks to the health and safety of any person, including the public, in, on or about the mine.

[am. B.C. Reg. 6/2021, App. 2, s. 1.]

Part 3 – Inspection Fees

Prescribed inspection fees

7 The prescribed fees for inspections are as set out in this Part.

Inspection fees for pits or quarries

8 (1) This section applies to holders of permits in respect of pits or quarries.

(2) A permit holder must pay to the Minister of Finance the applicable inspection fee as determined under subsection (4).

(3) Payment under subsection (2) must be made each year, on or before January 31, in respect of the period beginning January 1 of the previous calendar year.

(4) The annual inspection fee is the amount set out in Column 2 of the following table opposite the number of tonnes of materials extracted in the previous calendar year, as set out in Column 1:

Inspection Fees for Pits or Quarries

Column 1 Tonnes extracted	Column 2 Inspection fee
≤ 10 000	$150
> 10 000 – ≤ 25 000	$450
> 25 000 – ≤ 50 000	$900
> 50 000 – ≤ 100 000	$1 950
> 100 000	$3 750

Inspection fees for mineral or coal mines

9 (1) This section applies to holders of permits in respect of mineral or coal mines.

(2) A permit holder must pay to the Minister of Finance the applicable inspection fee as determined under subsection (4).

(3) Payment under subsection (2) must be made as follows:

(a) in respect of the period beginning January 1 and ending June 30, on or before July 31 of that year;

(b) in respect of the period beginning July 1 and ending December 31, on or before January 31 of the following year.

(4) Subject to subsection (5), the inspection fee is the amount calculated by multiplying the payroll for the applicable period under subsection (3), as determined for the purposes of the *Workers Compensation Act*, by 0.007.

(5) If the amount calculated under subsection (4) in respect of a period is less than $300, no inspection fee is payable for the period.

(6) The permit holder must, on request of the Minister of Finance and within the time requested, provide to the Minister of Finance payroll and other accounting records for the purpose of verifying the amount calculated under subsection (4).

Part 4 – Certification Fees

Definitions

10 In this Part:

"blasting certificate" has the same meaning as in the code;

"fireboss certificate" means a fireboss certificate and an underground coal mine fireboss certificate within the meaning of the code;

"shiftboss certificate" means a shiftboss certificate, an open pit shiftboss certificate and an underground shiftboss certificate within the meaning of the code;

"supervisor's certificate" means a certificate of competency, a manager's certificate of competency, a supervisor's certificate of competency and a supervisor's certificate within the meaning of the code.

[en. B.C. Reg. 73/2018, Sch. 1.]

Certification fees

11 (1) A person who applies for a supervisor's certificate must include with the application a fee totalling $100 for each examination referred to in Part 1 of the code that the applicant is required to complete.

(2) A person who applies, on or after April 1, 2019, for a blasting certificate must include with the application a fee totalling $100 for each examination referred to in Part 8 of the code that the applicant is required to complete.

(3) A person who applies, on or after April 1, 2020, for a shiftboss certificate must include with the application a fee totalling $100 for each examination referred to in Part 1 of the code that the applicant is required to complete.

(4) A person who applies, on or after April 1, 2021, for a fireboss certificate must include with the application a fee totalling $100 for each examination referred to in Part 1 of the code that the applicant is required to complete.

[en. B.C. Reg. 73/2018, Sch. 1.]

[Provisions relevant to the enactment of this regulation: *Mines Act*, R.S.B.C. 1996, c. 293, section 38 (2)]

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Mines Act

MINES REGULATION

B.C. Reg. 126/94

Investigation by inspector

1 An inspector may, during the exploration, development, operation, closure or abandonment of a mine, investigate any matter relating directly or indirectly to the health and safety of any person or the public, including an investigation with respect to

(a) death or injury,

(b) accidents,

(c) dangerous or unusual occurrences, or

(d) complaints or allegations relating to health or safety,

and, for the purposes of an investigation, management must provide the inspector with access to all of the mine, including the underground and surface portions, and all mine records.

[Provisions of the *Mines Act*, R.S.B.C. 1996, c. 293, relevant to the enactment of this regulation: section 38 (2) (a), (c) and (g)]

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Mines Act

NOTICE OF DEBT FORM REGULATION

B.C. Reg. 475/98

Last amended Jan. 20, 2005 by B.C. Reg. 17/2005

Notice of debt

1 The prescribed form referred to in section 17 (4) of the *Mines Act* for a notice of debt is the applicable form approved by the Director of Land Titles under the *Land Title Act*.

[en. B.C. Reg. 17/2005, Sch. 3, s. 3.]

[Provisions of the *Mines Act*, R.S.B.C. 1996, c. 293, relevant to the enactment of this regulation: sections 17 (4) and 38]

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